The examination is being carried out on the **following application documents**

Description, Pages

1-16 as published

Claims, Numbers

1-11 filed with entry into the regional phase before the EPO

Drawings, Sheets

1/8-8/8 as published

1 Citations

1.1 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 6 278 371 B1 (HOPKINS WILLIAM G [US]) 21 August 2001 (2001-08-21)

D2 US 8 757 377 B2 (ALEXANDER BRIAN K [US]; MEYERS GLENN [US] ET AL.) 24 June 2014 (2014-06-24)

1.2 The following documents have been cited in the international search report; the numbering will be adhered to in the rest of the procedure.

D3 US 2019/244501 A1 (FAVIER ALAIN [FR]) 8 August 2019 (2019-08-08)

D4 US 2008/061140 A1 (MCMAHON TOM [US]) 13 March 2008 (2008-03-13)

D5 US 2008/143537 A1 (NICHOLS DALE HUNT [US]) 19 June 2008 (2008-06-19)

2 Amendments (Art. 123(2) EPC)

2.1 The amendments filed with the letter dated 22-07-2022 introduce subject-matter which extends beyond the content of the application as filed, contrary to Article 123(2) EPC.

The applicant has highly amended the set of claims without providing the reasons why the requirements of Art. 123(2) EPC are met. While checking the compliance with said requirements, it has been noticed that the structure of the original set of claims and the original dependencies do not provide a direct and unambiguous support for all the new combinations of features created by the amendments made to the claims.

As non-exhaustive examples of Art 123(2) EPC issues, it has furthermore been noticed that :

- the whole original application is dedicated to electronic article surveillance devices, and in particular EAS-"Keepers" ; therefore, claiming a "security device keeper", furthermore comprising "a non-EAS label" as an alternative to "a security element", is considered as an unallowable significative broadening of the scope of the claimed subject matter ;
- "a means for securing" is seen as an unallowable generalisation of the only two originally claimed options ;
- new features have been introduced (e.g. "semi-rigid casing") ;
- intermediate generalisation have been created (claim 2 : "a transparent tape with a permanent glue" in place of "a transparent tape with a permanent glue and a peel-off backing material", furthermore being now an alternative to "a flexible adhesive support" contrary to the original claims).

The applicant has to provide the basis in the application as originally filed for any amendment made to the claims. Particular additional attention should be taken for providing the support for said new combinations of features created by the amendments made.

3 Clarity and Conciseness (Art. 84 EPC)

3.1 The application does not meet the requirements of Article 84 EPC, because claim 1 is not clear. The expression "with no locking mechanism" is unclear. Considering the figures of the application, it appears that the means 40 wrapping the product "locks" said product. Therefore the disclaimer claimed with said expression cannot be clearly understood.

3.2 The passage including the terms "is incorporated herein by reference" in §§[0001] and [0003] of the description could introduce subject matter that does not fall within the scope of the claims.

4 Novelty and Inventive Step (Art. 52(1), 54 and 56 EPC)

Notwithstanding the above-mentioned outstanding Art. 123(2) EPC objection, as well as Art. 84 objection, the following feature analysis of the disclosure of documents D1 and D2 is provided to the applicant.

In addition, the disclosure of documents D3-D5, cited and commented by the ISA, is also considered relevant.

4.1 Novelty :

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claims 1, 2, 5, 9, 10 is not new within the meaning of Article 54(1) and (2) EPC.

4.1.1 Document D1 discloses a disposable security device keeper *with no locking mechanism* (fig. 1B & 1C) comprising a rigid or semi-rigid casing (76, fig. 1B ; 86 fig. 1C ; col. 1 lines 19-20 ; col. 2 lines 29 & 37) that substantially corresponds to the shape of a product (fig. 1B & 1C) and adapted to cover at least a portion of one side of the product but not fully enclosing the product; a security element (16, fig. 1A ; col. 3 line 66-col. 4 line 17) (**or** a non-EAS label) attached to the casing (76, fig. 1B ; 86, fig. 1C) and adapted to be inaccessible to a consumer when the Keeper is attached to the product (fig. 1A ; col. 2 lines 40-43, 53-54, 60-61) ; and a means (75, fig. 1A ; 84, fig. 1C ; col. 1 lines 21-23 ; col. 4 lines 31-34, 37-39) for securing the Keeper to the product.

D1 further discloses the additional subject matter of claims 2 (75, fig. 1A & 84, fig. 1C, considering alternative "a)" of claim 2), 5&9 (fig. 1B & 1C), 10 (16, fig. 1A ; col. 3 line 66-col. 4 line 17).

4.2 Inventive step :

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claims 1-4, 6, 8-11 does not involve an inventive step within the meaning of Article 56 EPC.

4.3 D2 discloses a disposable security device keeper *with no locking mechanism* (fig. 1-4) comprising a rigid or semi-rigid casing (30) that substantially corresponds (at the extremity 54 ; col. 3 lines 1-11) to the shape of a product (20 ; col. 3 lines 52-59) and adapted to cover at least a portion of one side of the product but not fully enclosing the product; a security element (col. 2 lines 34-37) (**or** a non-EAS label) attached to the casing (in cavity 42 of 30) and adapted to be inaccessible to a consumer when the Keeper is attached to the product (fig. 3) ; and a means (34) for securing the Keeper to the product.

D2 further discloses the additional subject matter of claims 6 (46, 58 ; col. 2 lines 39-49), 8 (46), 10 (col. 2 lines 34-37).

Claim 2 : using an adhesive instead or in addition of post 50 to maintain 34 sticked to 30 is an ordinary solution in the field of EAS tags. Claim 3 : having a plurality of arrow shaped barbs instead of a single one (col. 2 lines 50-51) is not considered as involving an inventive activity.
Claim 9 : the shape is substantially rectangular (fig. 1-4).

4.3.1 As presented in the IPRP by the ISA, the disclosure of D3 renders the additional subject matter of claims 4 and 11 not inventive.

4.3.2 The combination of the subject matter of claim 7 and the subject matter of the claims said claim depends on, if proven that it complies with Art. 123(2) EPC, does not appear to be anticipated by the cited documents. If the applicant considers this subject matter for further amending the independent claim, the applicant is invited to provide a reasoning based on the problem-solution approach.

5 Other deficiencies

5.1 Independent claim 1 is not in the two-part form in accordance with Rule 43(1) EPC.

5.2 To meet the requirements of Rule 42(1)(b) EPC, the cited documents should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

6 Procedure

6.1 Should the applicant pursue the application in a further phase, he is invited to file new claims which take account of the above comments.

6.2 Reminder :

In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant should clearly identify the amendments made, irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (see Guidelines H-III, 2.2). The applicant is reminded that, in case the amendments are directed to a combination of claims not originally claimed, the basis should be provided on the basis of the original description. Possible intermediate generalisations must satisfy both the necessary conditions for valid intermediate generalisations (no essential and/or inextricably linked features can be removed from an embodiment) and the sufficient condition that they can be directly and unambiguously derived from the original disclosure taken as a whole (see GL, H-V, § 3.2.1).

When filing amended claims the applicant should at the same time bring the description into conformity with the amended claims. Care should be taken during revision, especially of the introductory portion and of any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC). The applicant should also adapt the description to the claims on file and delete or amend any statements or expressions which throw doubt on the scope of protection (GL F-IV, 4.3). Failure to do so could lead to the refusal of the application under Article 97(2) EPC in combination with Article 84 EPC. The applicant should amend the description as needed to fulfil the following requirements:

The technical field of the invention (Rule 42(1)(a), GL F-II.4.2) must correspond to the amended set of claims.

The summary of the invention (Rule 42(1)(c) and GL F-II.4.5) must correspond to the amended set of claims. If appropriate, statements such as “The invention is set out in the appended set of claims“ or “The invention is as defined in claim X“ can be applied instead of repeating the claims verbatim.

All embodiments which are not covered by the claims anymore must be deleted, unless these embodiments can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. In such case, they must be prominently marked as not being part of the present invention (T1808/06):

For example, independent claim <X> has been amended by limiting it to the feature of <feature A>. Ways of carrying out the invention using features presented as alternatives to this feature must either be deleted or the fact that they are not encompassed by the claims must be prominently stated.

Any combinations of features which do not fall under the scope of the amended independent claims must be prominently marked as not being part of the present invention.

For example, amended claim <X> comprises features <A>, <B> and <C> and the description on page X refers only to B+C as an embodiment of the invention. It must be marked as not being part of the invention.

Statements such as “The following examples/aspects/embodiments X, Y, Z are not according to the invention and are present for illustration purposes only” may be used at the start of the description (or in the list of figures) when such a situation arises.

All technical features of the independent claims shall not be presented as optional in the description. Terms such as “for example“, “may“, “can”, “exemplary“, “optionally“, “preferably“ and the like should be removed when preceding a feature of an independent claim.